

Court No. - 39

Case :- WRIT - C No. - 35684 of 2018

Petitioner :- M/S Subhash Stone Product

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Madan Lal Srivastava

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble B. Amit Sthalekar,J.

Hon'ble Surya Prakash Kesarwani,J.

Heard Sri Madan Lal Srivastava, learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondent no.3 and the learned Standing Counsel for the respondents no.1, 2 & 4.

The petitioner in the writ petition is seeking quashing of the recovery order dated 26.12.2017 whereby a sum of Rs.7,47,632/- is sought to be recovered from the petitioner as arrears of electricity bill.

The petitioner disputes the bill. If that be the position he has a remedy by filing his objection before the respondent no. 3 - Executive Engineer, Vidhut Vitran Khand II, Power Corporation Limited, Pipari, District Sonbhadra as per the provisions of Para 6.5 of the Electricity Supply Code, 2005.

The writ petition is accordingly dismissed with liberty to the petitioner to file his objection before the respondent no.3.

Order Date :- 27.10.2018

N Tiwari